

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
EDWARD GARCIA,

Plaintiff,

SUMMONS

Index #:

-against-

JURY TRIAL REQUESTED

THE CITY OF NEW YORK,
the NEW YORK CITY POLICE DEPARTMENT,
P.O. JUSTIN M. CLAVELL (Badge#29250),
and P.O. JOHN DOE.

Basis for Venue: location of incident in
Bronx County. Plaintiff's residence in
Bronx County

Defendants.

-----X

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: February 2, 2024



DAYAN LAW FIRM PLLC
Joshua Dayan, Esq.
80-02 Kew Gardens Rd, Suite 902
Kew Gardens, New York, 11415
(718)-268-9400

Service to:
See next page:

CITY OF NEW YORK
OFFICE OF THE COMPTROLLER
ONE CENTRE STREET
ROOM 1200
NEW YORK, NY 10007-2341

CITY OF NEW YORK
LAW DEPARTMENT
100 CHURCH STREET
NEW YORK, NY 10007

NEW YORK CITY POLICE DEPARTMENT
ONE POLICE PLAZA
NEW YORK, NY 10038

P.O. JUSTIN M. CLAVELL (Badge# 29250)
ONE POLICE PLAZA
NEW YORK, NY 10038

P.O. JOHN DOE
ONE POLICE PLAZA
NEW YORK, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
EDWARD GARCIA,

Plaintiff,

VERIFIED COMPLAINT

Index #:

-against-

JURY TRIAL REQUESTED

THE CITY OF NEW YORK,
the NEW YORK CITY POLICE DEPARTMENT,
P.O. JUSTIN M. CLAVELL (Badge#29250),
and P.O. JOHN DOE.Basis for Venue: location of incident in
in Bronx County. Plaintiff's residence in
Bronx County.

Defendants.

-----X

Plaintiff, by his attorney, JOSHUA DAYAN ESQ., as and for his Verified Complaint,
respectfully alleges, upon information and belief the following:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, Plaintiff EDWARD GARCIA ("Plaintiff") was and still is a resident of the County of Bronx, State of New York.
2. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK ("City") was and still is a municipal corporation, duly organized and existing under and by virtue of the law of the State of New York.
3. That at all times hereinafter mentioned, Defendant the NEW YORK CITY POLICE DEPARTMENT ("NYPD") was and still is a municipal corporation and/or municipal police department, duly organized and existing under and by virtue of the law of the State of New York.

4. That at all times hereinafter mentioned, Defendant P.O. JUSTIN M. CLAVELL and P.O. JOHN DOE were agents, servants, and/or employees of Defendants City and NYPD; upon information and belief were members of the NYPD in the 45 Police Precinct; and were acting for, upon, and in course of and in furtherance of the business of their employers and within the scope of their employment for Defendants City and NYPD.
5. That at all times hereinafter mentioned, Defendants City and NYPD employed police officers, including but not limited to P.O. JUSTIN M. CLAVELL and P.O. JOHN DOE and others that were involved in Plaintiff's wrongful arrest.
6. That at all times hereinafter mentioned, Defendants City and NYPD owned, maintained, supervised, managed, operated, inspected, and controlled the various police, facilities, police stations, police precincts, police equipment, police vehicles, all hereinafter mentioned in the Verified Complaint.
7. That at all times hereinafter mentioned, all of the actions of the police officers alleged herein, including but not limited to P.O. JUSTIN M. CLAVELL and P.O. JOHN DOE were done within the scope and course of their employment with Defendants City and NYPD and under color of the state law.
8. That prior to the commencement of this action, and within ninety (90) days after the happening of the incident herein, Plaintiff served a Notice of Claim in writing upon the Defendant THE CITY OF NEW YORK. (See Exhibit A, Notice of Claim Confirmation)
9. That Plaintiff has filed a Notice of Claim with the New York City Comptroller and received confirmation of its receipt on September 7, 2023.
10. That a 50-h hearing was held.

11. That this action is commenced within one (1) year and ninety (90) days of the date when the incident occurred to the Plaintiff.

STATEMENT OF FACTS

12. On or about June 21, 2023, at approximately 7:15 PM, Plaintiff was driving his vehicle when upon information and belief, an unmarked police vehicle began to follow him.

13. The unmarked police vehicle put its sirens on and drove right by Plaintiff, at which point Plaintiff voluntarily pulled over his vehicle and waited inside his vehicle for the NYPD police officers, including Defendant P.O. JUSTIN M. CLAVELL to approach him.

14. Defendant P.O. JUSTIN M. CLAVELL approached Plaintiff, violently grabbed Plaintiff from his vehicle and threw him on the street floor with so much force that Plaintiff's ankle broke.

15. Defendants P.O. JUSTIN M. CLAVELL and/or P.O. JOHN DOE proceeded to arrest Plaintiff and initiated frivolous criminal charges against him, all of which were dismissed by way of an adjournment in contemplation of dismissal (A.C.D.). **(Please see Exhibit B, Certificate of Disposition).**

16. As a result of the aforementioned NYPD police officers' wrongful actions, Plaintiff's ankle was broken, began to swell profusely, and required medical attention.

17. Upon information and belief, Defendant P.O. JUSTIN M. CLAVELL and P.O. JOHN DOE are police officers of the 45th NYPD police precinct, and wrongfully arrested Plaintiff, frivolously charging him with reckless driving in alleged violation of VTL 1212, when in fact it was the arresting officers in this case that were reckless, excessively forceful, and/or Negligent.

18. Plaintiff has suffered a broken ankle from the wrongful conduct of Defendant police officers P.O. JUSTIN M. CLAVELL and P.O. JOHN DOE, has suffered tremendous pain and suffering, incurred medical costs, suffered emotionally, lost wages, etc., all of which entitles Plaintiff to just compensation.
19. Plaintiff did not violate any law, rule, or regulation, or act in any way that would justify the actions of the NYPD and Defendants P.O. JUSTIN M. CLAVELL and P.O. JOHN DOE to stop, detain, and/or jeopardize Plaintiff's health, wellbeing, and safety the way that they did.
20. Due to the negligent, reckless, and excessively forceful conduct of P.O. JUSTIN M. CLAVELL, P.O. JOHN DOE and the NYPD, Plaintiff suffered a broken ankle, immense bruising, emotional distress and anguish, medical costs, and lost wages.
21. The Defendants, including P.O. JUSTIN M. CLAVELL and P.O. JOHN DOE acted with a knowing, willful, wanton, maliciousness, gross, negligent, reckless, unlawful, unreasonable, and/or flagrant disregard of Plaintiff's rights, privileges, welfare and wellbeing and are guilty of egregious and gross misconduct towards Plaintiff.
22. That by reason of the foregoing, Plaintiff has suffered extreme damages such as broken bones, bruising, scrapes, emotional distress, medical costs, lost wages, and tremendous levels of pain and suffering.

FIRST CAUSE OF ACITON
NEGLIGENCE AND RESPONDEAT SUPERIOR

23. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.
24. Defendant P.O. JUSTIN M. CLAVELL and P.O. JOHN DOE, without cause or provocation, negligently, carelessly, and in an unreasonable fashion detained Plaintiff, injuring him.

25. Defendant P.O. JUSTIN M. CLAVELL and P.O. JOHN DOE owed Plaintiff a duty to act reasonably, breached said duty, and proximately and actually caused Plaintiff's damages resulting from said breach.
26. The police officers of the NYPD, P.O. JUSTIN M. CLAVELL and P.O. JOHN DOE acted negligently in grabbing Plaintiff out of his vehicle and throwing Plaintiff on the street floor with so much force that it broke Plaintiffs' ankle.
27. The aforesaid actions of Defendants P.O. JUSTIN M. CLAVELL and P.O. JOHN DOE caused Plaintiff tremendous injury that has and will diminish Plaintiff's quality of life, cause immeasurable pain and suffering, and amount to expensive medical treatment, and lost wages.
28. As employees of the NYPD and the City, P.O. JUSTIN M. CLAVELL and P.O. JOHN DOE were acting within the scope of their employment and in furtherance of their employment at the time they arrested and injured Plaintiff, and their actions impose liability on the NYPD and the City for his negligent conduct and Plaintiff is entitled to full compensation for his damages and pain and suffering.

SECOND CAUSE OF ACTION
NEGLIGENT HIRING, TRAINING, SUPERVISION, AND RETENTION
UNDER NEW YORK STATE LAW

29. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.
30. Defendants NYPD and City negligently hired, trained, supervised, and retained the Defendant officers; Defendant NYPD and City were careless and reckless in the hiring, training, supervision, overseeing, and retention of Defendant officers P.O. JUSTIN M. CLAVELL and P.O. JOHN DOE.

31. As a result of this negligent hiring, training, supervision, overseeing, and retention, Plaintiff has suffered and continues to suffer damages.

THIRD CAUSE OF ACITON
RECKLESSNESS/RECKLESS DISREGARD

32. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

33. The aforesaid Defendants, P.O. JUSTIN M. CLAVELL and P.O. JOHN DOE, without cause or provocation, recklessly and with a wanton and reckless disregard for Plaintiff's wellbeing, injured Plaintiff, violently and needlessly breaking his ankle.

34. Defendants P.O. JUSTIN M. CLAVELL and P.O. JOHN DOE acted with a degree of awareness that their actions could and would cause a risk of harm to Plaintiff, and that said conduct indeed caused harm to Plaintiff.

35. That the Defendant police officers' actions in slamming Plaintiff into the street floor were unreasonable, and that said risk was unnecessary, and substantially greater than mere negligence.

36. That Defendant police officer, P.O. John Doe acted with a conscious disregard for the safety of Plaintiff and that Defendant knew or should have known that his actions may cause harm to Plaintiff, but consciously disregarded said risk.

37. The Defendant police officers' reckless conduct caused tremendous injury to Plaintiff that has and will diminish Plaintiff's quality of life, cause immeasurable pain and suffering, medical costs/treatment, and lost wages.

38. As employees of the NYPD and the City that were acting within the scope of their employment, P.O. JUSTIN M. CLAVELL's and P.O. JOHN DOE's actions impose liability on the NYPD and the City for his reckless conduct and Plaintiff is entitled to full compensation for his damages and pain and suffering.

FOURTH CAUSE OF ACITON
EXCESSIVE FORCE

39. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.
40. Plaintiff was not fleeing from the police on the above-described night of incident and did not take any action necessitating the use of excessive force by Defendant police officers P.O. JUSTIN M. CLAVELL and P.O. JOHN DOE.
41. Indeed, the Plaintiff voluntarily pulled his vehicle over and waited for the Defendant P.O. JUSTIN M. CLAVELL and P.O. JOHN DOE to approach him. Such an action on behalf of Plaintiff is quite literally the opposite of “avoiding the police.”
42. Defendant Police officers P.O. JUSTIN M. CLAVELL and P.O. JOHN DOE could have requested that the Plaintiff exit his vehicle, place him in handcuffs and peacefully place the Plaintiff under arrest.
43. Indeed, however, Defendant police officers angrily approached Plaintiff, yelled at him that “you were evading the police,” grabbed him and slammed him onto the floor in a violent and excessively forceful manner which left Plaintiff’s ankle broken, bruised, and in need of medical treatment.
44. That as a result of the foregoing, Plaintiff has suffered emotional, physical injuries, pain and suffering and other damages such as lost wages and medical costs. Plaintiff demands judgment against the Defendants in the amount which exceeds the jurisdiction of all lower courts.

FIFTH CAUSE OF ACITON
ASSAULT AND BATTERY

45. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

46. On or about June 21, 2023, Defendant police officers P.O. JUSTIN M. CLAVELL and P.O. JOHN DOE attacked and arrested Plaintiff and broke Plaintiff's ankle.
47. Plaintiff was falsely arrest arrested without probable cause.
48. Indeed, even if probable cause for an arrest of Plaintiff existed, Defendant police officers P.O. JUSTIN M. CLAVELL's and P.O. JOHN DOE's attack and slamming of Plaintiff on the floor constituted an assault and battery, and excessive force, causing Plaintiff injuries and damages of a physical, emotional, and psychological degree.
49. Indeed, there were no circumstances presented that reasonably gave rise to the level of force used by the police officers to physically harm Plaintiff the way that they did.
50. Defendant police officers P.O. JUSTIN M. CLAVELL's and P.O. JOHN DOE's attack on Plaintiff was not privileged and was without provocation.
51. The assault and battery by police officers P.O. JUSTIN M. CLAVELL and P.O. JOHN DOE were done intentionally, maliciously, and with wanton cruelty entitling Plaintiff to both compensatory damages and punitive damages.
52. Police officers P.O. JUSTIN M. CLAVELL and P.O. JOHN DOE assaulted and battered Plaintiff in the course of their employment as NYPD Police Officers and in furtherance of their employment as police officers for the purpose of arresting Plaintiff. Accordingly, Defendants NYPD and City are liable for said assault and battery as well as Defendant P.O. JUSTIN M. CLAVELL and P.O. JOHN DOE, entitling Plaintiff to judgment and compensation.

SIXTH CAUSE OF ACITON
FALSE ARREST and FALSE IMPRISONMENT

53. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

54. That on June 21, 2023, Defendant police officers P.O. JUSTIN M. CLAVELL and P.O.

JOHN DOE falsely arrested and falsely imprisoned Plaintiff with an intent to confine Plaintiff.

55. That Plaintiff was aware of the confinement and did not consent to it.

56. That said confinement of Plaintiff was not privileged, was done without necessary probable cause for Plaintiff's arrest, and violated Plaintiff's constitutional rights.

57. That as a result of the false arrest and false imprisonment of Plaintiff, Plaintiff has suffered damages and is entitled to compensation.

SEVENTH CAUSE OF ACITON
MUNICIPAL AND/OR GOVERNMENTALL LIABILITY

58. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

59. That Defendant NYPD, its employees, agents, and/or servants, failed to take any necessary steps to prevent this occurrence; failed to properly train its employees, agents and/or servants in arrest procedures; failed to properly train its employees, agents, and/or servants in proper procedures to stop individuals and/or suspects and were otherwise reckless, careless, and negligent.

60. That as a result of the above referenced negligence and/or intentional conduct of the NYPD, Plaintiff was caused to sustain physical, emotional damages, and other damages such as lost wages and medical costs which exceeds the jurisdiction of all lower courts.

EIGHTH CAUSE OF ACITON
PUNITIVE DAMAGES

61. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

62. The acts, conduct, and behavior of the P.O. JUSTIN M. CLAVELL and P.O. JOHN DOE warrants an award of punitive damages against Defendants and in the favor of Plaintiff.

As a result of Defendants' actions and/or inactions, Plaintiff suffered damages.

WHEREFORE, Plaintiff respectfully demands judgment against Defendants, and each of them, on all of the foregoing causes of action in an amount equal to or greater than \$500,000.00, an amount to be determined at trial in the form of compensatory damages for Plaintiff's pain and suffering, loss of enjoyment of life, economic loss, medical expenses, loss of wages, and other losses and damages, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiff further demands punitive damages on all causes of action, in an amount to be determined at trial and by the trier of fact, together with attorney's fees, costs, and disbursements of this action.

Dated:
February 2, 2024
Kew Gardens, NY

DAYAN LAW FIRM, P.L.L.C.,



Joshua Dayan, Esq.
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Kew Gardens, NY 11415
Joshua@dayanlawfirm.CO
718-268-9400

VERIFICATION BY ATTORNEY

JOSHUA DAYAN, an attorney duly admitted to practice law in the courts of the State of New York duly affirms under penalty of perjury: That he is the attorney for the Plaintiff in the above-entitled action, with offices located at 80-02 Kew Gardens Road, Kew Gardens New York, 11415, Suite 902; that he has read the foregoing Amended Complaint and knows the contents thereof; that the same is true to his knowledge, except as to matters stated to be alleged upon information and belief, and that as to those matters he believes them to be true. That the reason why this verification is made by deponent instead of the Plaintiff is because the Plaintiff does not reside within the County of Queens, which is the county where deponent has his office. Deponent further says that the grounds of his belief as to all matters in the amended complaint not stated to be upon her knowledge are based upon conversations with the Plaintiff and all of the pleadings within this action, and a review of the correspondence between the parties and other writings relevant to this action.

Dated:
February 2, 2024
Kew Gardens, New York

Sgd: *Joshua Dayan*

Joshua Dayan, Esq.